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TENTATIVE RULING

Plaintiff Dr. Casper Glenn's Motion for Summary Adjudication is GRANTED.

EVIDENTIARY OBJECTIONS

Code of Civil Procedure, Section 437c, subdivision (c) states, "[i]n determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court." (Code Civ. Proc., §437c, subd. (c).)

Plaintiff objects to portions of Dr. Uzun's Declaration and Grace Khalifa's Declaration, submitted in support of the Opposition.

The Court finds that Dr. Uzun has not established personal knowledge of the facts asserted in his declaration, particularly as he declares that he was absent from the country during Plaintiff's tenure at SBMC. The following objections are SUSTAINED: 1-3, 5-20, 22-30; the following objections are OVERRULED: 4, 21.

Moreover, the Court finds that Grace Khalifa's declaration contains statements that lack foundation and personal knowledge or are irrelevant. The following objections are SUSTAINED: 3-8, 11-4; the following objections are OVERRULED: 1-2, 9-10, 12.

On December 28, 2023, Defendants filed an Answer to the FAC asserting that "Plaintiff lacks standing to sue Defendants in that the FEHA prohibits discrimination against employees, not independent contractors. The answering Defendants assert that Plaintiff lacks standing in that Plaintiff failed to meet the pre-filing notice and exhaustion requirements of the Labor Code Private Attorneys General Act ("PAGA")." (Answer, p. 4: Twelfth Affirmative Defense.) Plaintiff moves for summary adjudication arguing that this affirmative defense fails as a matter of law because Plaintiff was an employee during the relevant period, and not an independent contractor. Plaintiff argues that the resolution of Plaintiff's worker classification will leave no triable issue of fact remaining in the Twelfth Affirmative Defense because he has not filed a claim under the Private Attorneys General Act and is not subject to the pre-filing notice and exhaustion requirements of that statute. The Court finds that motion for summary adjudication of the Twelfth Affirmative Defense is appropriate as it will completely dispose of this affirmative defense.

In support of the MSA, Plaintiff presents the following evidence:

(1) Declaration of Dr. Casper Glenn, along with the following exhibits:

- a. Exhibit A – SBMC's malpractice insurance application, which cannot be accepted into evidence as it is unintelligible.
- b. Exhibit B – Email Correspondence with SBMC's Clinic Director, Gladys Harper.
- c. Exhibit C – Text Message Exchange with Dr. Uzun.
- d. Exhibit D – Checks issued to Dr. Glenn.

(2) Declaration of Shelley K. Mack, along with the following exhibits:

- a. Exhibit A - SBMC's Delaware Certificate of Good Standing.
- b. Exhibit B - SBMC's Statement of Information filed with the California Secretary of State on July 9, 2025, bearing File No. BA20251437866.
- c. Exhibit C – SBMC's publicly available website.

The following facts are undisputed. SBMC is a Delaware corporation existing, registered to do business and doing business, and employing individuals in the County of Los Angeles, State of California, with a principal place of business at 5450 Lincoln Blvd, Playa Vista, California 90094. (UMF Nos. 1-2.) According to SBMC's Statement of Information filed with the California Secretary of State on July 9, 2025, SBMC's type of business is "Medical Center." (UMF No. 3.) SBMC provides healthcare services to patients and holds itself out to the public as a "Medical Center" and "Urgent Care" facility. (UMF No. 4.) SBMC describes itself on its website as an "Urgent Care & Medical Clinic" that offers "walk-in urgent medical care and Medical Specialty services for patients of all ages" and states that it "offers a full complement of medical specialties and ancillary services," including urgent care services, pain management and sports medicine, interventional pain management, neurology, bariatric, gastroenterology, ear nose and throat, and family medicine. (UMF No. 5.) SBMC also operates a Surgery Center. (UMF No. 6.) All patients Plaintiff treated at SBMC were SBMC's patients, presenting at SBMC's facility seeking SBMC's medical services. (UMF No. 11.) Plaintiff worked at SBMC's facility located at 5450 Lincoln Blvd, Playa Vista, California 90094. (UMF No. 13.) No written agreement existed between Plaintiff and Defendants governing Plaintiff's work for SBMC. (UMF No. 14.) SBMC paid Plaintiff's malpractice insurance premiums from the commencement of his engagement in August 2017 through at least the end of September 2019. (UMF No. 29.) At the time Defendants ended Plaintiff's working relationship with SBMC, Dr. Uzun told Plaintiff that SBMC had hired a full-time nurse practitioner and that Defendants were taking Plaintiff off their work schedule in order to "cut costs." (UMF No. 37.)

According to the evidence presented by Plaintiff, he is a licensed physician and surgeon who worked for SBMC as a Clinic Physician from August 14, 2017 through October 8, 2021, at its facility. (UMF Nos. 8, 13.) Plaintiff worked for approximately 36 hours per week on a continuous, regular schedule throughout his engagement. (Ibid.) Plaintiff's primary responsibility was to provide direct medical care to SBMC patients at its Urgent Care Center and Surgical Center and his duties included evaluating and treating patients for acute and urgent medical conditions, managing and treating primary care patients, and providing interventional pain management. (UMF Nos. 10, 12, 14.)

Plaintiff asserts that Defendants controlled the manner and conditions of his work during his tenure at SBMC. Defendants operated and controlled the medical environment and structured operations, where physicians, nurse practitioners, and other healthcare providers delivered patient care services as part of their regular business operations. (UMF Nos. 7, 10-13, 16-17, 22-25, 34.) Plaintiff did not determine his work schedule or hours and Defendants required him to comply with their administrative procedures and protocols, including charting, treatment, charging, billing, and other office operations. (UMF Nos. 11, 16, 19-21.) Plaintiff was required to perform a predetermined number of procedures per day and such quotas were

communicated by SBMC's office manager at the beginning of each workday, enforced through reprimands and reductions in work hours. (UMF Nos. 22-23.) Plaintiff was also directed to administer specific treatments, including IV infusions and vitamin therapies and, when he refused to participate in alleged fraudulent COVID-19 billing practices, COVID-19 testing was reassigned to another provider. (UMF Nos. 24-25.)

Furthermore, the work performed by Plaintiff was at the core of SBMC's regular business practice. (UMF Nos. 3-7, 10, 12, 15-16.) Plaintiff asserts that he did perform services at other medical facilities concurrently with his work at SBMC but did not maintain an independent medical practice. (UMF Nos. 31-33.) Defendant provided the physical workplace and essential infrastructure necessary for Plaintiff to provide services to SBMC's patients, including examination rooms, medical equipment, patient intake systems, billing infrastructure, and the nursing and administrative staff. (UMF Nos. 17-18.)

Plaintiff's engagement was long-term and continuous, spanning between August 14, 2017, through October 8, 2021, on a full-time basis, with a brief interim period in 2019-2020. (UMF No. 8.) Moreover, Plaintiff was compensated based on the services he performed at an hourly rate ranging from \$110 to \$140 per hour for urgent care work and \$500 to \$2,000 for each procedure performed at SBMC's surgical center. (UMF No. 13, 16, 17-18, 26, 31-34.) Finally, Defendants retained and exercised their right to discharge Plaintiff at will. (UMF No. 35.) Around October 2021, Defendants terminated Plaintiff's working relationship and hired a full-time nurse practitioner. (UMF No. 37.) Subsequently, SBMC retained at least two new doctors to work at the Urgent Care Center. (UMF No. 38.)

While the California Supreme Court case *Dynamex Operations W. v. Superior Court* (2018) is the controlling authority for determining worker classification, pursuant to Labor Code section 2783, subdivision (b), the holding in *Dynamex* does not apply to physicians and surgeons. Instead, the controlling authority for determining whether a physician is an employee or independent contractor is set forth in *S.G. Borello & Sons, Inc. v. Department of Industrial Relations* (1989) 48 Cal. 3d 341 ("Borello"). Based on the evidence presented, the Court finds that Plaintiff has met his burden of demonstrating that he is a licensed physician and surgeon and his classification as an employee or independent contractor must be assessed under the test in *Borello*.

Pursuant to *Borello*, "[t]he primary test of an employment relationship is whether the 'person to whom service is rendered has the right to control the manner and means of accomplishing the result desired....'" [Citation.] Under this rule, the right to exercise complete or authoritative control must be shown, rather than mere suggestion as to detail. A worker is an independent contractor when he or she follows the employer's desires only in the result of the work, and not the means by which it is achieved.' [Citations.]" (*Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1178-1179, quoting *Borello* (1989) 48 Cal.3d at 350.) "While conceding that the right to control work details is the 'most important' or 'most significant' consideration, the authorities also endorse several 'secondary' indicia of the nature of a service relationship." (*Borello*, 48 Cal.3d at 351.) These factors include the right to discharge at will, without cause, as well as "(a) whether the one performing services is engaged in a distinct occupation or business; (b) the kind of occupation, with reference to whether, in the locality, the work is usually done under the direction of the principal or by a specialist without supervision; (c) the skill required in the particular occupation; (d) whether the principal or the worker supplies the instrumentalities, tools, and the place of work for the person doing the work; (e) the length of time for which the services are to be performed; (f) the method of payment, whether by the time or by the job; (g) whether or not the work is a part of the regular business of the principal; and (h) whether or not the parties believe they are creating the relationship of employer-employee." (*Ibid.*) These factors are intertwined and "their weight depends often on particular combinations." [Citation.]" (*Ibid.*)

Based on the evidence presented, the Court finds that Plaintiff has met his burden of establishing that, under the *Borello* framework, he was Defendants' employee. Plaintiff has demonstrated that Defendants controlled the manner and means of his work and his environment, as he worked at their medical facility, followed their protocols, procedures, and quotas, and faced the possibility of reprimands and reductions in work hours for failure to follow these procedures. Plaintiff was directed to administer specific treatments and was reassigned when he questioned the COVID-19 testing practices. All services, which were part of SBMC's core regular business practice, were performed at SBMC's facility, using its examination rooms, medical equipment, intake systems, and support staff, and SBMC paid Plaintiff's malpractice insurance premiums. Plaintiff's full-time working arrangement extended over more than four years and he was compensated on an hourly basis for his urgent care work and per procedure for his surgical work, not on a project basis. (*Borello*, 48 Cal.3d at 351, fn. 5.) During this period, Plaintiff did not operate an independent medical practice or maintain a separate facility for treating patients. Finally, Defendants exercised their right to discharge Plaintiff at will.

The burden shifts to Defendants to demonstrate that a triable issue of material fact exists regarding Plaintiff's classification. In opposition, Defendants present the declarations of Defendant Dr. Guven Uzun; Grace Khalifa, an office staff worker at SBMC; and Amaryllis Malekniazi, a Registered Nurse at SBMC. The Court has addressed the objections to these declarations and considers only the admissible evidence.

Defendants present evidence that Plaintiff was hired as SBMC's Medical Director, in order to replace Guven Uzun, who was no longer authorized to practice medicine in California and was about to depart for an extended stay in his native country, Turkey, where he was licensed to practice medicine. (Uzun Decl., ¶2.) In his declaration, Dr. Uzun makes assertions regarding what Dr. Glenn's role entailed, whether he was free to determine his own work schedule, and whether he was engaged in a distinct occupation. However, as discussed above, the Court sustains objections to these portions of Dr. Uzun's declaration as he admits he departed the country for an extended period and, thus, it is not clear whether these assertions are based on personal knowledge and observation.

Moreover, Defendants' opposition heavily relies on Plaintiff's title as Medical Director and issuance of 1099 forms to dispute the classification of employee. However, even if Plaintiff served as SBMC's Medical Director, Plaintiff's title or tax forms are not dispositive of the classification, and the inquiry must center on the level of control exercised over Plaintiff and the other factors outlined in *Borello*. (*Borello*, 48 Cal.3d at 349 ("The label placed by the parties on their relationship is not dispositive, and subterfuges are not countenanced.") Defendants also point to Plaintiff's acknowledgment that he performed services at other medical facilities. However, this factor alone does not raise an issue of material fact, particularly given that Defendants do not cite to any authority for the contention that a doctor performing services at another medical facility automatically qualifies as independent contractor. In fact, Defendants do not dispute that "all patients Plaintiff treated at SBMC were SBMC's patients, presenting at SBMC's facility seeking SBMC's medical services." (UMF No. 11.) Finally, Defendants argue that Dr. Glenn is an independent contractor under the test in *Dynamex*; however, as discussed previously, Labor Code section 2783, subdivision (b), expressly states that *Dynamex* does not apply to physicians and surgeons.

The Court finds Defendants have not presented sufficient admissible evidence to create a triable issue of material fact regarding Dr. Glenn's classification as an employee.

Accordingly, Plaintiff's Motion for Summary Adjudication is GRANTED.